

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ALJUSTICE CORREA,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICERS NICHOLAS HASPIL (SHIELD
9698) AND JOHN DOES 1-3,

Defendants.

SUMMONS

Index No.: _____

Plaintiff designates
Bronx County
as the place of trial

The basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Albany, New York
September 6, 2022

/s/ Jessica Gorman

Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
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Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

NEW YORK CITY POLICE OFFICER NICHOLAS HASPIL (SHIELD 9698), 40th
PRECINCT, 257 ALEXANDER AVENUE, BRONX, NEW YORK 10454-1133

NEW YORK CITY POLICE OFFICERS JOHN DOES 1-3, 40th PRECINCT, 257
ALEXANDER AVENUE, BRONX, NEW YORK 10454-1133

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----
ALJUSTICE CORREA,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICERS NICHOLAS HASPIL (SHIELD
9698) AND JOHN DOES 1-3,Defendants.
-----**VERIFIED COMPLAINT****JURY TRIAL
DEMANDED**

Index No.: _____

ALJUSTICE CORREA, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, AND NEW YORK CITY POLICE OFFICERS NICHOLAS HASPIL (SHIELD 9698), AND JOHN DOES 1-3, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

PARTIES

3. At all relevant times, Plaintiff resided in Bronx County, City and State of New York. He currently resides in Bronx County.

4. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant New York City Police Department.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

6. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER NICHOLAS HASPIL (SHIELD 9698) was a police officer with the New York City Police Department, believed to be working out of the 40th Precinct. This Defendant is sued in his individual and official capacities.

7. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER JOHN DOE 1 was a police officer with the New York City Police Department, believed to be working out of the 40th Precinct. Plaintiff does not yet know this Defendant's name but he is the Defendant who approached, initially searched, and arrested Mr. Correa. This Defendant is sued in his individual and official capacities.

8. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER JOHN DOE 2 was a police officer with the New York City Police Department, believed to be working out of the 40th Precinct, and believed to be a Detective. Plaintiff does not yet know this Defendant's name but he strip-searched Mr. Correa at the Precinct. He wore a suit and tie, was a Hispanic male, about 6'2", slim, and clean shaven with some gray in his hair. This Defendant is sued in his individual and official capacities.

9. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER JOHN DOE 3 was a supervising police officer with the New York City Police Department, believed to be working out of the 40th Precinct, and believed to be a Sergeant or Lieutenant. Plaintiff does not yet know this Defendant's name but he was the supervising officer who approved of the arrest, charges, and/or prosecution of Plaintiff. This Defendant is sued in his individual and official capacities.

10. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

11. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

12. On the afternoon of July 11, 2020, the Plaintiff, Aljustice Correa, walked out of his home on 140th Street in the Bronx to go to the store to buy a birthday present for his little brother.

13. As he was walked past the Saw Mill Playground, several uniformed police officers approached Mr. Correa in a marked police car. One officer, Defendant John Doe 1, got out and yelled at Mr. Correa, who turned around and froze.

14. Defendant John Doe 1 tackled Mr. Correa into the playground gate shouting "Where is the firearm? Where is the firearm?" Mr. Correa denied knowing anything about a gun but John Doe 1 pinned his knee into Mr. Correa's back, pushing the side of his head into the gate, and searched him.

15. Mr. Correa had no weapons or any other contraband on him, and upon information

and belief, there was no legal basis to detain, arrest, or search him. Despite this, John Doe 1 arrested Mr. Correa, who was transported to the 40th Precinct.

16. At the precinct, Defendant John Doe 2, believed to be a Detective, strip-searched Mr. Correa, even though John Doe 1's search turned up absolutely nothing, and there was no apparent legal basis to strip-search him.

17. As John Doe 2 searched Mr. Correa he kept asking him if he knew anyone with a gun or anyone who deals drugs. Mr. Correa denied both.

18. Nothing was found in the strip-search.

19. At the precinct Mr. Correa asked for medical attention for his neck, which was hurting from his face being pushed into the gate during his arrest and first search, and for his wrists, which were swollen and painful from too tight handcuffs. Police denied him medical attention.

20. He also asked to contact his family. Police also denied him that.

21. Defendant officer Haspil completed and signed the criminal complaint against Mr. Correa charging him with the felonies of first- and third-degree robbery, second degree criminal possession of a weapon, criminal possession of a firearm, and fourth degree grand larceny; and the misdemeanors of petit larceny, criminal possession of a weapon, and criminal possession of stolen property.

22. Upon information and belief, Defendants Haspil and John Does 1-2 caused Mr. Correa to be arrested, charged, and prosecuted without sufficient legal basis.

23. Upon information and belief, Defendant John Doe 3, who was either a Sergeant, Lieutenant, or other supervising officer, would have had to sign off on and approve of Mr. Correa's arrest, charges, and/or prosecution.

24. Mr. Correa was ultimately brought to Central Booking, then arraigned.

25. He was incarcerated for about 32 hours before he was able to post bail.

26. The charges were dismissed in Mr. Correa's favor and sealed on November 16, 2020.

27. In addition to suffering the indignity of being arrested and prosecuted on false charges, including violent felonies, Mr. Correa also suffered from exacerbated anxiety and fear in general, and of the police specifically, as a result of this incident. He also suffered from sleeping difficulties and nightmares and other mental and emotional issues, for which he sought mental health treatment.

28. His neck also hurt from being pushed into the gate, and his wrists were swollen from the handcuffs being so tight.

29. And besides the cash he had on him, none of his property taken from him at arrest was returned to him.

30. Officers in the 40th precinct have a long documented history of violating citizens' rights, largely with impunity.

31. Since 2001, there have been hundreds and hundreds of complaints and allegations against numerous officers in this precinct. Of these, at least 233 of them were substantiated against some 92 different officers, including detectives, sergeants, lieutenants, captains, and deputy inspectors.

32. At least 176 of these substantiated charges were in the last decade alone.

33. The substantiated charges include four for unlawful strip searches, all by Lieutenants and a Sergeant, 26 for excessive force, more than 50 for unlawful stops and/or frisks, and more than 30 for unlawful searches, and at least 17 for unlawful arrests or threats of arrest, among other violations.

34. Several officers have had multiple substantiated complaints. For example, one officer had 10 substantiated complaints 2013, including for chokeholds, excessive force, threats of force, and threats of arrest. This same officer also had at least five lawsuits filed against him, at least three of which settled. Another officer had substantiated complaints of excessive force against him in 2014, 2016, and 2017. Another had substantiated complaints of an unlawful strip search in 2019 and excessive force in 2016. Despite that, he was promoted to Lieutenant. Another Lieutenant illegally detained twelve people he knew were innocent and transported them to the precinct. A Detective used excessive force in 2019 and 2012, and made a retaliatory arrest. Another officer made illegal stops, issued a retaliatory summons, used excessive force, and put someone in an unlawful chokehold in 2016 and 2018. A Detective had three substantiated charges of unlawful stops and frisks in 2013, 2014, and 2016. A Lieutenant had at least five substantiated charges of unlawful stops, frisks, and searches brought against him in 2014 and 2016 while he was still a Sergeant. He was promoted anyway. A Deputy Inspector had two substantiated charges brought against him in the late 1990s when he was a Detective, nine substantiated charges brought against him in 2003 for unlawful frisks, searches, arrest threats when he was a Sergeant, another substantiated charge for unlawful frisk in 2006 when he was a Lieutenant, and a substantiated charge for yet another unlawful stop in 2009 when he was a Captain. He was promoted to Deputy Inspector, and charged again in 2012 for an unlawful stop and frisk.

35. Upon information and belief, no meaningful discipline was taken against these officers, and in many cases, officers with serious substantiated charges against them were actually promoted.

36. Defendant Haspil also had a complaint filed against him in 2021 for an excessive force incident. The allegation was closed because the matter went into litigation. The outcome of

that litigation is not known.

37. Additionally, a very brief online search shows at least 99 lawsuits have been brought in Supreme and federal courts against at least 30 different officers in the 40th Precinct for a range of civil rights violations. These include at least 15 suits against Detectives, Sergeants, Lieutenants, and Deputy Inspectors.

38. Upon information and belief, some of those suits are still pending, and at least 55 were settled.

CAUSES OF ACTION

FIRST CAUSE OF ACTION AGAINST DEFENDANT JOHN DOES 1-2 PURSUANT TO 42 U.S.C. § 1983 UNLAWFUL SEARCHES AND SEIZURE

39. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

40. As set forth above, Defendant John Doe 1 initially stopped, detained, and searched Mr. Correa on the street. Defendant John Doe 2 strip-searched him at the precinct. Both without apparent sufficient legal cause.

41. This violated Mr. Correa's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS JOHN DOES 1-2 PURSUANT TO 42 U.S.C. § 1983 EXCESSIVE FORCE

42. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

43. As set forth above, upon information and belief, Defendant John Doe 1 pushed Mr. Correa into the gate when he detained and searched him. There is no evidence that Mr. Correa resisted or that there was any reason to use force. Additionally, Defendant John Doe 2 strip-searched Mr. Correa despite the apparent lack of lawful justification for the search.

44. This violated Mr. Correa's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**THIRD CAUSE OF ACTION AGAINST DEFENDANT JOHN DOE 1
PURSUANT TO 42 U.S.C. § 1983
FALSE ARREST**

45. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

46. As set forth above, this Defendant arrested Mr. Correa without apparent sufficient legal basis to do so.

47. This violated Mr. Correa's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**FOURTH CAUSE OF ACTION AGAINST DEFENDANTS HASPIL AND JOHN DOES 1-3
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION**

48. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

49. As set forth above, these Defendants knowingly and intentionally caused Mr. Correa to be prosecuted without apparent probable cause or legal justification.

50. This violated Mr. Correa's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS HASPIL AND JOHN DOES 1-3
PURSUANT TO 42 U.S.C. § 1983
FALSE IMPRISONMENT

51. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

52. As set forth above, Mr. Correa was incarcerated for about 32 hours on the false charges before he was able to post bail.

53. This violated Mr. Correa's constitutional rights to be free from false imprisonment, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK AND NYPD
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

54. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

55. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

56. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

57. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

58. As set forth above, and upon information and belief, Defendants Haspil and John Does 1-3 knowingly and intentionally stopped, detained, search, arrested and charged Mr. Correa, then caused him to be prosecuted and imprisoned without probable cause, without legal justification, and on false charges. Defendant John Doe 3 would have had to approve of the charges and prosecution.

59. Upon information and belief, these Defendants took these actions with the knowledge and implicit approval of their supervisors.

60. As detailed above, incidents like these are part of a larger pattern and practice in the 40th precinct, and in the NYPD as a whole. This precinct has a long history of numerous police officers, including lieutenants, detectives, sergeants, and deputy inspectors routinely violating the civil rights of citizens with impunity. Not only have supervisors in the precinct participated in these violations, but upon information and belief, higher-ups in the NYPD and in the City have turned a blind eye to these violations, thereby allowing them to continue.

61. In light of the numerous substantiated charges and numerous successful lawsuits brought against multiple officers in the 40th Precinct, higher-ups had to know what was happening at the Precinct, including the culture of civil rights violations frequently happening by rank and file and supervisory level officers. Higher ups either failed to more closely examine the Defendant

officers' actions with regard to Mr. Correa or they turned a blind eye to their violations. They did this despite the fact that serious questions should have been raised.

62. Yet, upon information and belief, the Defendant City of New York and the New York City Police Department failed to more closely supervise or monitor these officers or to provide extra training or take any other remedial or preventative steps to ensure they acted in compliance with the law.

63. The violations against Mr. Correa occurred in accordance with these very practices policies, and customs, through the City and the Police Department's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individually named Defendants here.

64. These actions and inactions violated Mr. Correa's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

DEMAND FOR JURY TRIAL

65. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;

D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York
September 6, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.
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ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are communications with others known to me, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Albany, New York
September 6, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.